



CHAPTER xxxviii

An Act to make further provision in reference to the improvement health local government and finances of the borough of Leyton and for other purposes.
[28th July 1950.]

WHEREAS the borough of Leyton in the county of Essex is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas it is expedient to make further provision with reference to the health local government and improvement of the borough:

And whereas it is expedient to make further provision in regard to the finances of the Corporation:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1. This Act may be cited as the Leyton Corporation Act Short title. 1950.

PART I
—cont.Division of
Act into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Streets.

Part III.—Sanitation and buildings.

Part IV.—Nuisances and offensive trades.

Part V.—Infectious disease.

Part VI.—Food.

Part VII.—Finance.

Part VIII.—General.

Interpretation.

26 Geo. 5. &
1 Edw. 8. c. 49.

3.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

55 & 56 Vict.
c. 57.

“The Act of 1892” means the Private Street Works Act 1892 ;

61 & 62 Vict.
c. clxxv.
4 Edw. 7.
c. ccxl.

“The Act of 1898” and “the Act of 1904” mean respectively the Leyton Urban District Council Act 1898 and the Leyton Urban District Council Act 1904 ;

“The Act of 1933” means the Local Government Act 1933 ;

“The Act of 1936” means the Public Health Act 1936 ;

“Authorised security” means any mortgage stock bond or other security which the Corporation are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money ;

“The borough” means the borough of Leyton ;

7 & 8 Geo. 6.
c. 31.

“Child” has the same meaning as in the Education Act 1944 ;

10 & 11 Geo. 6.
c. 49.

“The commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;

“Contravention” includes a failure to comply and “contravene” shall be construed accordingly ;

“The Corporation” means the mayor aldermen and burgesses of the borough ;

“The Corporation undertakings” means the undertakings of the Corporation from time to time existing from which revenue is derived ;

- “ The council ” means the council of the borough ;
- “ The county council ” means the county council of the administrative county of Essex ;
- “ Daily penalty ” means a penalty for each day on which an offence is continued after conviction therefor ;
- “ Electric line ” has the same meaning as in the Electric Lighting Act 1882 ; 45 & 46 Vict.
c. 56.
- “ Enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough ;
- “ Financial year ” means the period of twelve months ending on the thirty-first day of March ;
- “ Food ” has the same meaning as in the Food and Drugs Act 1938 ; 1 & 2 Geo. 6.
c. 56.
- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;
- “ The Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 and by this Act ; 9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.
- “ The Minister ” means the Minister of Health ;
- “ Statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933 ;
- “ Statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ; 38 & 39 Vict.
c. 83.
- “ Telegraphic line ” has the same meaning as in the Telegraph Act 1878 ; 41 & 42 Vict.
c. 76.
- “ the town clerk ” “ the medical officer ” “ the treasurer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health the treasurer the surveyor and any sanitary inspector of the borough.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

STREETS

Interpretation
of Part II.

19 Geo. 5.
c. 17.

4.—(1) In this Part of this Act the following expressions have the meanings hereby respectively assigned to them:—

“classified road” has the same meaning as in the Local Government Act 1929;

“structure” means a wall fence hoarding or similar erection but for the purpose of this definition the expression “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof began.

Improvement of streets

Trees grass
verges and
gardens.

5.—(1) Subject to the provisions of this section the Corporation shall have power—

(a) to cause trees or shrubs to be planted in any street in the borough or in tubs placed by them for the purpose in any such street;

(b) to cause grass verges or gardens to be laid out in any such street;

(c) to erect and maintain guards or fences and otherwise do anything expedient for the maintenance or protection of such trees shrubs tubs grass verges or gardens;

(d) to cut down any such tree or shrub to remove any such tub and to abolish any such grass verge or garden or enlarge or diminish the area thereof;

(e) by notice to prohibit persons from entering upon or causing or permitting horses cattle or vehicles to enter upon any such grass verge which is mown or which is maintained in an ornamental condition or any such garden.

(2) Any such notice as is referred to in paragraph (e) of the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge or garden to which it relates and if any person contravenes a notice so posted he shall be liable to a penalty not exceeding twenty shillings.

(3) Subject to the provisions of this subsection the powers conferred by this section shall not be exercisable except in a street maintainable by and vested in the Corporation or upon land so vested which forms part of a street:

Provided that when carrying out in any street or any part thereof any works under the Act of 1892 the Corporation may

exercise any such power in the street or that part thereof with the consent of the majority in number and rateable value of the owners of land abutting on the street or that part thereof and treat any expenses incurred in so doing as part of the expenses of carrying out the said works.

(4) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(5) Section 1 of the Roads Improvement Act 1925 shall cease to apply to the Corporation and anything done by the Corporation under that section before the passing of this Act shall be deemed to have been done under this section. 15 & 16 Geo. 5. c. 68.

(6) Nothing in this section shall affect the duty of the Corporation to provide footpaths or grass or other margins under section 58 of the Road Traffic Act 1930.

20 & 21 Geo. 5.
c. 43.

6.—(1) Subject to the provisions of this section the Corporation may vary the relative widths of the carriageway and footway or footways in any street in the borough being a highway repairable by the inhabitants at large. Variation of width of carriageways and footways.

(2) The Corporation shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister of Transport.

(3) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the Corporation shall send notice of the proposed work to the Minister of Transport.

(4) The Corporation shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway or upon the approaches to any such bridge without the consent in writing of the railway undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

7.—(1) Subject to the provisions of this section the Corporation may enter into and carry into effect agreements with persons having a legal interest in land adjoining any street in the borough not being a trunk road for the adjustment of the boundary of the street. Adjustment of boundaries of streets.

(2) For the purposes of this section the Corporation—

(a) may exchange land including land forming the site of the street for other land and pay or receive money for equality of exchange; and

PART II
—cont.

(b) shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey any such land in accordance with the agreement.

(3) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the borough and in the case of a county road notice in writing has been given to the county council.

(4) During the said period of one month any four ratepayers of the borough may appeal to a court of summary jurisdiction against the proposal to enter into the agreement and subsections (2) to (7) of section 93 (As to appeals) of this Act shall apply to any such appeal as if the proposal were a decision of the Corporation.

(5) Where the street is a county road (whether the Corporation have claimed to exercise the functions of maintenance and repair of the street or not) the county council shall have the same right of appeal as any four ratepayers of the borough have under the last foregoing subsection.

(6) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Corporation in any case in which the consent of that department would have been required if this Act had not been passed.

(7) In this section the expression "ratepayers" has the same meaning as in the Rating and Valuation Act 1925.

15 & 16 Geo. 5.
c. 90.
Enforcement of
improvement
line.
15 & 16 Geo. 5.
c. 71.

8.—(1) At any time after prescribing the improvement line of any street under section 33 of the Public Health Act 1925 the Corporation may by notice require the owner of any building which or any part of which was beyond or in front of the improvement line when it was prescribed to demolish set back or alter the said building within six months from the service of the notice so that it shall not project beyond or in front of the improvement line.

(2) For the purpose of complying with any such notice the owner may notwithstanding anything in any lease or other agreement enter upon any land or building affected by any requirement of the notice and carry out the work required by the notice.

(3) Where any building is demolished set back or altered in compliance with a notice under this section the Corporation shall pay compensation to any owner or tenant thereof for any damage or loss sustained by him in consequence of the compliance and the amount of such compensation shall in default of agreement be determined by arbitration in accordance with

the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

PART II
—cont.

12 & 13 Geo. 6.
c. 42.

(4) In determining the amount of the compensation payable under this section to the owner or tenant of a building in a case where—

(a) he has an interest in land abutting on so much of the improvement line as immediately before the service of the said notice intersected or abutted on the building or land occupied in connection therewith; and

(b) the value of his said interest is enhanced by reason of the widening or improvement of the street;

the amount of the enhancement in value shall be set off against the compensation:

Provided that any such enhancement in value shall be estimated on the assumption that planning permission in respect of the land would be granted under the Town and Country Planning Act 1947 for the operations or uses specified in the Third Schedule to that Act but for no other development.

(5) If any person fails to comply with a notice given him under this section he shall be liable to a penalty not exceeding twenty pounds and the Corporation may do all such things as may be necessary to comply with the notice and recover the cost of so doing from that person.

(6) In this section the expression “building” includes a structure.

9.—(1) In any street in the borough or on land belonging to the Corporation and abutting on any such street the Corporation may subject to the provisions of this section erect and maintain at stopping places on the routes of public service vehicles or trolley vehicles—

(a) shelters and other accommodation for persons intending to travel by such vehicles; and

(b) barriers for the regulation of queues of such persons.

(2) The Corporation shall not exercise the powers of this section—

(a) without the consent of the Minister of Transport in any street being a trunk road or on land abutting on any such street; or

(b) without the consent of the county council in any street being a county road or on land abutting on any such street; or

(c) without the consent of the undertakers concerned—

(i) in or upon any bridge carrying a street over any railway or the approaches thereto or under a bridge carrying a railway over any street; or

PART II
—cont.

(ii) in any street belonging to and repairable by any transport undertakers and forming the approach to any station or depot of such undertakers; or

(iii) so as to obstruct or interfere with the access to or exit from any station or depot of any transport undertakers.

(3) Any consent required by this section shall not be unreasonably withheld but may be given subject to any reasonable conditions including a condition that the Corporation shall remove any shelter or other accommodation or barriers either at any time or at or after the expiration of a period if reasonably required so to do by the person giving the consent.

(4) Any question arising as to whether any consent required by this section has been unreasonably withheld or has been given subject to unreasonable conditions or whether the removal of any shelter or other accommodation or barriers has been unreasonably required shall—

(a) in the case of a consent of the Minister of Transport be referred to and determined by an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers;

(b) in the case of any other consent be referred to and determined by the Minister of Transport.

(5) Before erecting a shelter or other accommodation under the powers of this section the Corporation shall consult with the Commissioner of Police for the Metropolis with regard to the intended position thereof.

(6) The Corporation may enter into and carry into effect agreements with any person authorised to run public service vehicles or trolley vehicles within the borough in relation to the erection maintenance and use of any such shelter or other accommodation or barriers and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(7) In this section—

the expressions “public service vehicle” and “trolley vehicle” have the same respective meanings as in the Road Traffic Acts 1930 to 1947; and

the expression “transport undertakers” means any railway or statutory passenger road transport undertakers.

Direction
signs.

10.—(1) The Corporation may on a conspicuous part of any building structure or land in the borough at or near the corner of any street cause to be put up or painted signs indicating the classified road number of the street and the direction and distance to towns railway stations public buildings and other places of a public character.

(2) At least one month before exercising their powers under this section the Corporation shall give to the owner of the building

structure or land notice of their decision so to do together with particulars of the size design and position of the sign proposed.

PART II
—cont.

(3) If any person wilfully and without the consent of the Corporation removes obliterates alters defaces or obscures any such sign otherwise than in the course of demolishing or altering the building or structure or executing work on the land he shall be liable to a penalty not exceeding forty shillings and the Corporation may recover from him the expenses of replacing or making good the sign.

(4) The exercise of the powers conferred by this section shall be subject to the provisions of the Road Traffic Acts 1930 to 1947 and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

11. The Corporation may (if they think fit) illuminate—

Illumination
of street
names etc.

(1) any inscription which has been set up of the name of any street within the borough; and

(2) any sign put up or painted by the Corporation under the powers of section 10 (Direction signs) of this Act.

Protection and repair of streets

12.—(1) No person shall place or erect in the borough any structure at or within a distance of ten yards from the corner of any street unless he has given to the Corporation notice of his intention so to do accompanied by plans and particulars of the structure and the Corporation have approved the placing or erection thereof under this section.

Erection of
structures at
street corners.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they disapprove the placing or erection of the structure or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice :

Provided that a notice shall not be given under this subsection except on the ground that the structure would by obstructing the view of foot-passengers or drivers of vehicles constitute a danger to the traffic on the street upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The Corporation may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them and if within the said five weeks the Corporation have not given notice under the last foregoing subsection they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

PART II
—cont.

(4) Where the Corporation have approved the placing or erection of the structure it shall not be placed or erected—

- (a) otherwise than in accordance with the plans and particulars submitted as aforesaid ; or
- (b) if notice has been given under subsection (2) of this section of any conditions or modifications otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by any notice given under subsection (2) thereof may appeal to the Minister of Transport who may make such order as he thinks fit and whose decision shall be final.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a penalty not exceeding five pounds.

(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at or within a distance of ten yards from the corner of a street for the purpose of the construction alteration repair or maintenance of any building or works :

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who placed or erected it shall be liable to a penalty not exceeding five pounds.

(8) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he is convicted may order him within such time as may be fixed by the order to remove the structure in respect of which he was convicted and if he fails to comply with the order—

- (a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues ; and
- (b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing :

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(9) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

(10) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight

line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

PART II
—cont.

13.—(1) No person shall erect or bring forward beyond the building line on land abutting on a street in the borough any structure of a greater height than six feet six inches above the level of the ground at the nearest boundary of the street. Application of building line to walls etc.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a penalty not exceeding five pounds.

(3) The foregoing provisions of this section shall not apply to a temporary structure required to be erected as mentioned in subsection (1) of this section for the purpose of the construction alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction alteration repair or maintenance of the building or works is completed the person who erected the structure shall be liable to a penalty not exceeding five pounds.

(4) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he was convicted may order him within such time as may be fixed by the order to remove the structure or if he so elects to set it back or alter it so that it no longer contravenes the provisions of subsection (1) of this section and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the structure.

(5) Where after the expiration of five years from the passing of this Act there is on any site in the borough a structure which existed on that site at the passing of this Act and could not have been erected there after the passing thereof without contravening the provisions of subsection (1) of this section—

(a) the Corporation may by notice stating the effect of paragraphs (b) and (c) of this subsection require the owner or occupier of the site to remove set back or alter the structure within such time (not being less than seven days) as may be specified in the notice so that it will comply with those provisions;

PART II
—cont.

(b) if the owner or occupier complies with the said notice the Corporation shall on demand repay to him the reasonable expenses incurred by him in so doing ;

(c) if the owner or occupier fails to comply with the said notice the Corporation at their own expense may remove the structure but shall if he so requires re-erect it so as not to contravene the said provisions.

(6) In this section the expression “building line” in relation to any land means—

(a) any building line prescribed by the Corporation in respect of the land under the provisions of any enactment ; or

(b) if there be no such line then any line beyond which a house or building may not be erected on the land without infringing a condition enforceable by the Corporation under subsection (2) of section 140 of the Housing Act 1936 ; or

(c) if there be neither of such lines then the line beyond which a house or building may not (except with the consent of the Corporation) be erected or brought forward on the land without contravening the provisions of the Public Health (Buildings in Streets) Act 1888.

26 Geo. 5. &
1 Edw. 8. c. 51.

51 & 52 Vict.
c. 52.

(7) The provisions of this section shall not apply to any wall erected on land belonging to any railway dock canal or inland navigation undertakers so long as that land is used by those undertakers primarily for the purposes of their railway dock canal or inland navigation undertaking.

Crossings over
footways.

14.—(1) Where the owner or occupier of any premises in the borough which abut on any street repairable by the inhabitants at large habitually uses or permits to be used any grass verge or kerbed or paved footway in the street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from those premises the Corporation may by notice to the owner or occupier as the case may be either—

(a) require the construction across the grass verge or footway of a carriage-crossing constructed of such materials and in such manner as may be specified in the notice ; or

(b) in the case of a footway require it to be strengthened or adapted in such manner as may be so specified ; or

(c) impose such other reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as may be so specified :

Provided that—

PART II
—cont.

- (i) the Corporation shall not exercise the powers of this subsection in relation to the grass verge or footway of a trunk road without the consent of the Minister of Transport or otherwise than in accordance with any conditions attached by him to his consent; and
- (ii) this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Town and Country Planning Act 1947.

(2) If the Corporation make any requirement under paragraph (a) or paragraph (b) of the foregoing subsection they may execute such works as may be necessary to secure compliance with that requirement and may recover the expenses of so doing from the owner or occupier.

(3) If the Corporation impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

15.—(1) Where the forecourt of any premises abutting on a street in the borough or any steps or projection or goods (whether for sale or not) placed in any such forecourt is or are a source of danger obstruction or inconvenience to the public the Corporation may by notice—

Fencing of
forecourts
and removal
of goods.

- (a) require the owner or occupier of the premises to fence such forecourt from the street; or
- (b) require the occupier to remove the goods placed thereon.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under paragraph (a) of subsection (1) of this section as they apply in relation to the notices mentioned in subsection (1) of that section.

(3) Any person who contravenes a requirement under paragraph (b) of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and if after conviction therefor he places any goods or permits any goods to remain on a forecourt in respect of which a notice has been served on him under the said paragraph he shall be liable to a daily penalty not exceeding two pounds.

(4) If under paragraph (b) of subsection (1) of this section the Corporation require any person to remove any goods placed on a forecourt they shall pay to him compensation for any loss

PART II
—cont.

sustained by him in consequence of the action of the Corporation and the amount of such compensation shall in default of agreement be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

Forecourts
injurious to
amenities
of street.

16.—(1) If the council by resolution determine that any stall or other erection (not being an advertisement to which regulations made in pursuance of section 31 of the Town and Country Planning Act 1947 for the time being apply) on any forecourt in the borough is by reason of its character injurious to the amenities of the street on which the forecourt abuts the Corporation may by notice require the owner or occupier of the forecourt either to make such alterations in the stall or erection as may be necessary to prevent it from being injurious to the amenities of the street or if he so elects to remove it.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

Awnings over
footways.

17.—(1) No part of any awning over the footway of a street in the borough being a highway repairable by the inhabitants at large shall project over any part of the footway which is less than one foot six inches from the outer edge of the footway.

(2) If any person places or causes or permits to be placed over any such footway an awning which contravenes the foregoing subsection he shall be liable to a penalty not exceeding forty shillings.

(3) If an awning over any such footway is so constructed or maintained as to be prejudicial to the safety or convenience of the public the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to prevent the awning being so prejudicial.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) In this section the expression “awning” includes a blind shade or other covering.

*Miscellaneous*Stopping up
and diversion
of highways.

18.—(1) Subject to the provisions of this section a court of summary jurisdiction—

(a) if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof; and

(b) if so satisfied that such a highway can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) An application or order under this section—

(a) may provide for the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway ;

(b) may be made with respect to any length of a highway ;

(c) may be made with respect to two or more highways or lengths of highways which are connected with each other ;

and in relation to any application or order in respect of a length of a highway or two or more highways or lengths of highways any reference in the subsequent provisions of this section to a highway shall be construed as a reference to that length or those highways or lengths of highways as the case may be.

(3) No application or order shall be made under this section with respect to a trunk road.

(4) No order shall be made under this section unless the court is satisfied that notice of the intention to apply for the order specifying the time and place at which the application is to be made and the terms of the order applied for (embodying a plan showing the effect of the order)—

(a) has at least twenty-eight days before the date on which the application is made been served on the local planning authority and on the owners or reputed owners and the occupiers of all land abutting on the highway and also when the application relates to a classified road on the Minister of Transport ; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as may be reasonably sufficient for notifying persons using the highway of the application ;

and that a similar notice (except that there may be substituted for the plan a statement of the place where the plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(5) No order under this section authorising the diversion of a highway—

(a) shall be made unless the written consent of the local planning authority and of every person having a legal interest in the land over which the highway is to be diverted is produced to and deposited with the court ;

PART II
—cont.

(b) shall authorise the stopping up of any part of the highway until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices of the peace and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

(6) On the hearing of the application the Corporation the local planning authority and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard.

42 & 43 Vict.
c. 49.
23 & 24 Geo. 5.
c. 38.

(7) An appeal against a decision of a court of summary jurisdiction under this section may be brought to quarter sessions by any person who was entitled under the last foregoing subsection to be and was or claimed to be heard on the application and for the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order ;

(b) where more than two persons were heard or claimed to be heard in opposition to the application it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court but without prejudice to the right of any of those persons to appear as respondents to the appeal ;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(8) Where by reason of the diversion of a highway under this section any person is relieved from liability to repair the highway he shall be liable to pay to the Corporation such sum as may be agreed between him and the Corporation or in default of agreement as may be determined by arbitration to represent the value to him of the relief and any such sum shall be payable either—

(a) as a lump sum ; or

(b) by annual payments of such amount and continuing for such number of years as may be agreed or determined as aforesaid.

(9) Every order made under this section—

(a) shall have annexed thereto a plan signed by the chairman of the court ; and

(b) shall be transmitted by the clerk of the court to the clerk of the peace together with any written consents

produced to the court under subsection (5) of this section ;

and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (5) of this section among the records of quarter sessions.

(10) Every order made under this section shall be binding on all persons whatsoever.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

19.—(1) The owner or occupier of any premises situated under or abutting on a pavement forming part of a street in the borough may with the consent of the Corporation provide means for the admission of light or air to the premises through the pavement. Pavement lights and ventilators.

(2) In giving their consent under this section the Corporation may attach thereto such terms and conditions as they think fit.

(3) Anything done before the passing of this Act which would have been lawfully done under this section if done after the passing thereof is hereby ratified.

20.—(1) Any tent van shed or similar structure standing upon land abutting upon a street shall for the purpose of section 3 of the Public Health (Buildings in Streets) Act 1888 in its application to the borough be deemed to be a house or building within the meaning of those words where they first occur in the said section. Provisions as to tents vans etc.

(2) It shall not be lawful without the written consent of the Corporation to place any tent van shed or similar structure used for human habitation so as to stand upon any square court alley or passage to which the public have access.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

21.—(1) In this section the expression “ private street works ” has the same meaning as in section 6 of the Act of 1892. Application of Act of 1892 to parts of public streets.

(2) Notwithstanding anything contained in the Act of 1892 where it appears to the Corporation that by reason of additions made otherwise than by the giving up for the purpose by the Corporation of lands owned by them to an existing footpath bridle-path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) a new street has been formed the Corporation may in respect of such street or any part of such street carry out private street works under

PART II
—cont.

the provisions of the Act of 1892 and apportion the expenses thereof on the premises fronting adjoining or abutting on such street or such part thereof as if no part of the said street was so repairable.

(3) Notwithstanding anything contained in the Act of 1892 the Corporation may under the provisions of that Act carry out private street works throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (2) of this section the Corporation shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(4) For the purposes of any apportionment under subsection (3) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

Restriction
on buildings
under
footways.

22.—(1) After the passing of this Act no part of any building (including the foundations) shall except with the consent of the Corporation be constructed so as to extend under the footway of any street at a less depth than six feet below the surface of such footway:

Provided that the Corporation shall not consent to the construction of any part of a building under a trunk road without the approval of the Minister of Transport.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding twenty pounds.

(3) Where any person is convicted of an offence under subsection (1) of this section the court by which he was convicted may order him within such time as may be fixed by the order to remove or alter the part of the building so that it no longer contravenes the provisions of this section and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding two pounds for each day on which the failure continues; and

(b) the Corporation after giving him notice of their intention so to do may remove the part of the building concerned and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the Corporation have given him notice of their intention to remove the part of the building.

(4) Nothing in this section shall extend or apply to the construction of any building (not being a house or building to be used as offices) by any railway canal or inland navigation undertakers in exercise of their statutory powers.

23. If any tree fence wall or structure or any part thereof shall fall on or across any street the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof.

PART II
—cont.

Removal of
trees etc.
from streets.

24.—(1) The Corporation may remove and store any furniture articles goods or materials which may have been placed or dropped (whether accidentally or otherwise) in or upon any street and which—

Removal of
furniture
from streets.

(a) may have remained there for more than forty-eight hours ; or

(b) are likely to cause an obstruction ;

and the Corporation shall not be liable for any loss or damage caused by such removal or storage.

(2) If the Corporation remove any furniture articles goods or materials under the powers of this section—

(a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof ; and

(b) they shall not exercise any power to sell any such furniture articles goods or materials whether under section 276 of the Act of 1936 or otherwise until after the expiration of fourteen days from the date of such notification or three months from the day on which they removed the furniture articles goods or materials whichever shall first occur.

25.—(1) No person shall mix mortar or any like substance in any street repairable by the inhabitants at large except upon such board or in such receptacle as will protect the street from such mortar or substance :

Mixing of
mortar in
streets.

Provided that this section shall not apply to the mixing in any street of mortar or like substance for the purposes of making up maintaining repairing altering or improving such street.

(2) Any person who shall contravene the provisions of this section shall be liable to a penalty not exceeding two pounds.

26.—(1) For the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by section 5 (Trees grass verges and gardens) of this Act shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

For protection
of Postmaster-
General.

(2) If in the exercise or intended exercise of the power conferred on them by section 6 (Variation of width of carriage-ways and footways) of this Act the Corporation require an alteration either temporarily or permanently in any telegraphic

PART II
—cont.

line belonging to or used by the Postmaster-General paragraphs (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(3) If in consequence of the exercise or intended exercise by the Corporation of the power conferred on them by the said section 6 of this Act the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any street affected by the exercise or intended exercise by the Corporation of the said power the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Corporation shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof:

Provided that—

(a) before making such alteration the Postmaster-General shall give a notice to the Corporation containing particulars of the telegraphic line to be altered and of the nature of the alteration he intends to make;

(b) the Corporation may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and section 4 of the Telegraph Act 1878 (as substituted by section 2 of the Railway and Canal Commission (Abolition) Act 1949) shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Corporation is to be carried out.

(4) Notwithstanding any agreement entered into under section 7 (Adjustment of boundaries of streets) of this Act the Postmaster-General shall continue to have the same powers and rights in respect of any telegraphic line belonging to or used by him which remains in under upon over along or across the site of any such street as if the same had continued to be part of the street:

Provided that if the Corporation or any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall thereupon apply in all respects as though the Corporation or the said person (as the case may be) were undertakers within the meaning of the said Act.

(5) Where any highway or length of a highway is stopped up in pursuance of an order made under section 18 (Stopping

12 & 13 Geo. 6.
c. 11.

up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or length of a highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or length of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (6) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be ;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it ;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1949 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(6) As soon as the whole or any length of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (5) of this section shall commence to run from the date on which such notice is sent.

(7) In this section the expression “alteration” has the same meaning as in the Telegraph Act 1878.

PART III

SANITATION AND BUILDINGS

Sewers drains and sanitary conveniences

Delegation
of power to
examine and
test drains etc.

27.—(1) In lieu of section 48 of the Act of 1936 the following provisions of this section shall if the council by resolution so determine have effect in the borough for such period as may be specified in the resolution either as respects the whole of the borough or as respects such part or parts thereof as may be so specified.

(2) Where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing—

(a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance ; or

(b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water ;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the Corporation shall as soon as possible reinstate any ground which has been opened by the medical officer or the sanitary inspector and make good any damage done by him.

Summary
power to
remedy
stopped-up
drains etc.

28.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in the borough a drain private sewer water-closet or soil-pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with the Corporation may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served :

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

(a) whether any requirement contained in a notice served under this section or any work done by the Corporation was reasonable ; and

- (b) whether the expenses incurred by the Corporation in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

29.—(1) If any drain or private sewer in the borough—

- (a) is not sufficiently maintained and kept in good repair to the satisfaction of the Corporation ; and

- (b) can in the opinion of the Corporation be sufficiently repaired at a cost not exceeding fifty pounds ;

Power to
repair drains
and private
sewers.

the Corporation may after giving not less than seven days' notice to the owner or owners cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the owner or owners of the drain or sewer in such proportions (if there is more than one owner) as the surveyor may determine :

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(2) In any proceedings under this section the court may inquire—

- (a) whether the drain or sewer in question required repair and whether the work done by the Corporation was reasonable ; and

- (b) whether any apportionment made by the surveyor was fair ;

and the court may make such an order concerning the expenses or their apportionment as appears to the court to be just :

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

30. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a dwelling shall be treated as a separate building and where two or more parts of such building are occupied as dwellings by separate families each such part shall be treated as a separate building :

Closet
accommoda-
tion for
separate
dwellings.

PART III
—cont.

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent in writing of the owner of the building the person so letting such part of the building shall for the purposes of this section be deemed to be the owner.

Power to
cleanse drains
etc.

31. The Corporation may at the request of the owner or occupier of any premises in the borough undertake the cleansing of any drains water-closets sinks or gullies in or connected with the premises and may make such charge (if any) for so doing as they think fit.

Sanitary
conveniences
for persons
employed on
construction
work.

32.—(1) The Corporation may by notice require a contractor engaged in or upon any building operations or the construction or reconstruction of any works in the borough within such time as may be specified in the notice—

(a) to provide in connection therewith sufficient and satisfactory accommodation in the way of sanitary conveniences for the accommodation of the workpeople employed thereon ; and

(b) where persons of both sexes are employed in or in connection with the operations or works to provide separate accommodation as aforesaid for persons of each sex ;

if it is reasonably practicable so to do :

1 Edw. 8. & 1 Geo. 6. c. 67. Act 1937 applies. Provided that this section shall not apply to building operations or works to which section 107 or section 108 of the Factories

(2) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding two pounds for each day on which the default continues after conviction therefor.

As to renewal
of private
sewers or
drains.

33. Any notice given by the Corporation under section 39 of the Act of 1936 and requiring the renewing of a private sewer or drain may require the construction of the new private sewer or drain in such position as not to be under any building.

Sealing of
drains and
sewers.

34.—(1) As from the commencement of this section before commencing to demolish any premises in the borough the owner of such premises shall give not less than seven days' notice to the Corporation of his intention so to do and the Corporation if it is reasonable so to do having regard to all the circumstances of the case may within seven days after the receipt of such notice serve a counter-notice upon such owner requiring him to the satisfaction of the Corporation either—

(a) to seal any sewer or drain on in or under the site of such premises ; or

(b) to take up and remove any such sewer or drain and seal any other sewer or drain with which such first-mentioned sewer or drain may be connected ;

and thereupon such owner shall comply with any such requirement.

(2) Any such owner as aforesaid shall to the satisfaction of the Corporation fill in make good and restore the surface of the ground disturbed by or interfered with by the execution of any works under subsection (1) of this section if in the circumstances of the case it is reasonable so to do.

(3) If any such owner fails to give such notice as is required by subsection (1) of this section or fails within twenty-eight days after the completion of the clearing of the site to comply with—

(a) any requirement contained in any such counter-notice as is referred to in subsection (1) of this section ; or

(b) the provisions of subsection (2) of this section ;

he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound and the Corporation may in addition to and without derogation from their right to recover any such penalty as aforesaid enter into and upon the said premises and may therein thereon or thereunder execute all such works and do all such acts and things as may be necessary to comply with any such requirement and may recover the cost reasonably incurred by them in so doing from such owner.

(4) Where any person shall reconstruct or lay in a new position or permanently discontinue the use of any drain which communicates with any sewer or other drain such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end Any person who knowingly contravenes the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

Buildings and structures

35.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof. Ruinous and dilapidated buildings and neglected sites.

(2) Where a building or part of a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof within a reasonable time specified in the notice—

(a) to execute such works of repair or restoration ; or

PART III
—cont.

- (b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the borough is lying on the site of the building or that part thereof or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) If any person fails to comply with a notice served on him under this section the Corporation may themselves—

- (a) in the case of a notice served under subsection (2) execute such works of repair or restoration as they think necessary or if they think fit demolish the building or any part thereof and remove any rubbish resulting from or exposed by the demolition ; or
- (b) in the case of a notice served under subsection (3) remove the rubbish or material ;

and in either case recover from that person the expenses reasonably incurred by them in so doing.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(6) In this section the expression “ building ” includes any structure.

Demolition
of buildings.

36.—(1) As from the commencement of this section no person shall demolish or take down any building or part thereof within the borough without first notifying the Corporation of his intention so to do and without complying with such terms and conditions as the Corporation think fit including terms and conditions requiring—

- (a) the shoring up or the rendering reasonably weatherproof of adjacent buildings ; and
- (b) the removal of any material or rubbish resulting from or exposed by the demolition or taking down and the clearance of the site ;

to the satisfaction of the Corporation within a reasonable time to be prescribed by the Corporation :

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Where notice is given to the Corporation under subsection (1) of this section and such notice is accompanied by particulars of such building or part thereof and of the proposals in regard thereto the Corporation shall be deemed to have approved the proposals unconditionally unless within six weeks from the receipt thereof or within such longer period as the applicant may agree in writing to allow they give notice to him that they have decided to the contrary.

(3) If any term or condition imposed under this section is not complied with within the time therein prescribed the Corporation may themselves enter upon the building and the site thereof and carry out the work.

(4) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(5) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the owner of the site of the demolished building.

(6) Any person who contravenes the provisions of this section or of any term or condition imposed under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

(7) Nothing in this section shall apply in relation to—

(a) any poultry-house greenhouse coal-shed or cycle-shed or other similar structure ; or

(b) any building belonging to any railway canal or inland navigation undertakers and held by them for the purposes of their undertaking :

Provided that the exemption conferred by paragraph (b) of this subsection shall not extend to houses or to buildings last used before demolition as offices or showrooms other than buildings so used which form part of a railway station.

37. Where it appears to the Corporation that any building or structure in the borough or any part of such building or structure is in such a condition as to be dangerous to persons in such building or structure or any adjoining premises or using any street upon which such building or structure abuts the Corporation may until either—

(1) the building or structure shall have been taken down secured or repaired in pursuance of section 75 of the

PART III
—cont.

Towns Improvement Clauses Act 1847 as incorporated in the Public Health Act 1875 ; or

10 & 11 Vict.
c. 34.
38 & 39 Vict.
c. 55.

- (2) any order made by a court of summary jurisdiction under section 58 of the Act of 1936 in respect of such building or structure shall have been complied with or executed ;

employ and pay watchmen and do all such other acts as may be necessary to watch such building or structure and may recover the expenses reasonably incurred by them in so doing from the owner of the building or structure :

Provided that the Corporation shall forthwith give to the owner of any building or structure notice that they propose to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building or structure.

As to defective
roofs.

38.—(1) Where the Corporation are satisfied that—

- (a) any roof in the borough is in such a state (in this section referred to as a “ defective state ”) as to be prejudicial to health or a nuisance ; and
(b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such roof the procedure prescribed by sections 93 to 95 of the Act of 1936 ;

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation intend to remedy the defective state of the roof themselves and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he intends to remedy the defective state of the roof and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such roof.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation may execute such works and take such steps as may be necessary

to remedy the defective state of the roof to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

PART III
—cont.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

- (i) the alleged defective state did not exist at the time of the service of the notice ; or
- (ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such works and taking such steps without first complying with the provisions of section 93 and section 94 of the Act of 1936 ; or
- (iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the roof.

(b) A person against whom proceedings are taken under subsection (3) of this section shall upon information duly laid by him and on giving to the Corporation not less than three clear days' notice of his intention be entitled to have any person to whose act default or sufferance he alleges that the defective state of the roof was due brought before the court in the proceedings and if the original defendant proves that the defective state of the roof arose or continued by the act default or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person ; or
- (ii) to apportion the expenses between persons by whose acts defaults or sufferances the defective state of the roof arose or continued in such manner as the court may deem fair and reasonable.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the roof of any premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) The powers and functions of the Corporation under this section may be exercised by the medical officer or the sanitary inspector.

PART III

—cont.

New building
overreaching
adjoining
chimneys.**39.**—(1) Where after the passing of this Act—

- (a) any person erects or raises a building in the borough (in this section referred to as the “taller building”) to a greater height than an adjoining building; and
- (b) any chimneys or flues of the adjoining building are in the party wall or in an external wall of the adjoining building;

the Corporation may by notice—

- (i) require that person within such time as may be specified in the notice to build up those chimneys and flues (if it is reasonably practicable so to do) so that the top thereof will be of the same height as the top of the chimneys of the taller building or the top of the taller building whichever is the higher; and
- (ii) require the owner or occupier of the adjoining building to allow the first-mentioned person to enter on that building and carry out such work as may be necessary to comply with the notice served on him.

(2) If any person fails to comply with a notice under this section he shall be liable to a penalty not exceeding twenty pounds and in the case of a notice served under paragraph (i) of subsection (1) of this section the Corporation may themselves execute such work as may be necessary to comply with the notice and recover the expenses of so doing from the person on whom the notice was served.

Height of new
chimneys.

40.—(1) Where plans for the extension or erection of a building used or to be used for manufacturing or other purposes are in accordance with building byelaws deposited with the Corporation and the plans show that it is proposed to construct a chimney for carrying smoke or steam or noisome or deleterious gases or effluvia from the building the Corporation shall reject the plans unless they are satisfied that the height of the chimney as shown on the plans will be sufficient to prevent it being prejudicial to health or a nuisance having regard to—

- (a) the purpose of the chimney;
- (b) the position and description of buildings near thereto;
- (c) the levels of the neighbouring ground; and
- (d) any other matters requiring consideration in the circumstances.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) This section shall not apply to a chimney of a generating station consent to the construction of which has been given in accordance with the provisions of the Electricity (Supply) Acts 1882 to 1936 by the Minister of Fuel and Power.

41.—(1) If a court of summary jurisdiction are satisfied upon a complaint by the Corporation that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance the court may make an order requiring the owner of the chimney flue or pipe within such time as may be specified in the order—

Power to order
alteration of
domestic
chimneys.

(a) to cause it to be raised to a height so specified ; or

(b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless they are satisfied that the work to be done in pursuance of the order will not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding two pounds for each day on which the default continues after conviction therefor.

42.—(1) No person shall in or in connection with any house shop or office in the borough construct without the consent of the Corporation any cellar or room the floor level of which is lower than the ordinary level of the subsoil water on under or adjacent to the site of the house shop or office.

Cellars and
rooms below
subsoil
water level.

(2) Any consent under this section may be given subject to such conditions as to the construction or use of the premises as may be specified therein and any such conditions shall be binding on successive owners of the house shop or office.

(3) If any person constructs a cellar or room in contravention of subsection (1) of this section or any conditions attached to any consent under this section—

(a) he shall be liable to a penalty not exceeding twenty pounds ; and

(b) the Corporation may by notice require him within such reasonable time as may be specified in the notice either to alter the cellar or room so that its construction will no longer contravene the said subsection or conditions or if he so elects to fill it in or otherwise make it unusable ; and

PART III
—cont.

(c) if he fails to comply with any such notice the Corporation may themselves fill in the cellar or room or otherwise make it unusable and recover from him the expenses of so doing.

(4) If any person uses a cellar or room in contravention of any such conditions he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding two pounds.

5 Geo. 5. c. 22.
16 & 17 Geo. 5.
c. 11. (5) The provisions of the last two foregoing subsections shall have effect subject to the provisions of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 as to the avoidance for want of registration as a local land charge of any prohibition or restriction imposed by virtue of any such conditions.

(6) Nothing in this section shall apply to the construction of any cellar or room in connection with any shop or office which forms part of a railway station.

Food storage
accommoda-
tion.

43.—(1) Every house erected in the borough after the passing of this Act shall be provided with sufficient and suitable accommodation for the storage of food and any other house in the borough not so provided shall if reasonably practicable be so provided within one month from the service by the Corporation on the owner thereof of a notice requiring it to be so provided.

(2) If any house required to be provided as aforesaid is occupied when not so provided the owner thereof shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding one pound.

(3) The owner of any house on whom a notice is served under subsection (1) of this section shall have power notwithstanding any lease or other agreement to enter the house and carry out such work as may be necessary to comply with the notice.

(4) For the purposes of this section—

(a) the expression “house” includes any part of a building which is occupied or intended to be occupied as a separate dwelling;

(b) the conversion of a building into two or more dwellings shall be deemed to be the erection of each of those dwellings; and

(c) a house the erection whereof was commenced before the passing of this Act shall not be deemed to have been erected after the passing of this Act:

Provided that where any part of a building has been let for occupation as a separate dwelling without the consent in writing of the owner of the building the person so letting such part of the building shall for the purposes of this section be deemed to be the owner.

44.—(1) Where plans of a house are in accordance with building byelaws deposited with the Corporation the Corporation may reject the plans if they do not show that the house will be provided with a bathroom containing a fixed bath. Provision of
bathrooms.

(2) If the Corporation reject the plans for non-conformity with this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been rejected on account of such non-conformity.

45.—(1) A house in the borough which is occupied or is of a type suitable for occupation by persons of the working classes shall be deemed for the purposes of section 9 of the Housing Act 1936 to be not in all respects fit for human habitation— Extension of
powers under
section 9 of
Housing
Act 1936.

(a) if it is not kept repaired and painted sufficiently to prevent the dilapidation thereof and to secure reasonable amenities for the occupiers thereof ; or

(b) if the interior surface of the walls thereof is not papered or painted with oil-bound water paint or distempered with washable distemper sufficiently as aforesaid.

(2) On an appeal to the county court under section 15 of the said Act by a person aggrieved by a notice requiring the execution of works to remedy the defects referred to in subsection (1) of this section the court shall take into consideration—

(a) in the case where the person aggrieved is a lessee or agent for a lessee the length of the unexpired period of the lease ;

(b) the period for which the house is likely to continue occupied ;

(c) the expenditure incurred on the house during the preceding three years by the person having control of the house or the owner thereof ; and

(d) whether the condition of the house is or is not due to the wilful default or neglect of the occupier.

(3) In this section the expressions “ house ” “ owner ” and “ person having the control of the house ” have the same meanings as in the Housing Act 1936.

Filthy or verminous premises or articles

46. Section 83 of the Act of 1936 shall in its application to the borough have effect as if the following were substituted for subsection (1) thereof:— Cleansing
of filthy or
verminous
premises.

“(1) Where the local authority upon consideration of a report from any of their officers or other information in their possession are satisfied that any premises other than a factory within the meaning of the Factories Act 1937—

(a) are in such a filthy or unwholesome condition as to be prejudicial to health ; or

PART III
—cont.

(b) are verminous ;

the authority shall give notice to the owner or occupier of the premises requiring him to take such steps as may be specified in the notice to remedy the condition of the premises by cleansing and disinfecting them and by either—

(i) distempering or whitewashing the interior surface thereof ; or

(ii) in the case of premises used for human habitation or as shops or offices papering or painting the said interior surface ;

and the notice may require among other things the removal of wallpaper or other covering of the walls or in the case of verminous premises the taking of such steps as may be necessary for removing or destroying vermin ”.

Prohibition
of sale of
verminous
articles.

47.—(1) No dealer shall in the borough—

(a) prepare for sale ;

(b) sell or offer or expose for sale ; or

(c) deposit for sale or preparation for sale ;

any household article if it is to his knowledge verminous or if by taking reasonable precautions he could have known it to be verminous.

(2) If any household article which is verminous is on any premises in the borough—

(a) being prepared or offered by a dealer for sale ; or

(b) exposed by a dealer for sale or deposited by a dealer for sale or preparation for sale ;

the medical officer or the sanitary inspector may cause the article to be disinfested or destroyed as the case may require and if necessary for that purpose to be removed from the premises and the Corporation may recover from the dealer the expenses incurred by the medical officer or the sanitary inspector in taking any action under this subsection.

(3) If any person contravenes the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds.

(4) For the purposes of this section—

(a) the expression “ dealer ” means a person who trades or deals in any household article ;

(b) the expression “ household article ” means an article of furniture bedding or clothing or any similar article ;

(c) the expression “ preparation for sale ” shall not include disinfestation.

Hairdressers and barbers

PART III

—cont.

48.—(1) As from the commencement of this section no person shall carry on the business of a hairdresser or barber on any premises in the borough unless he and those premises are registered by the Corporation. Hairdressers and barbers.

(2) Subject to the provisions of this section any person who makes an application in that behalf and furnishes the Corporation with particulars of his name and residence and of the premises in respect of which he desires to be registered shall be registered in respect of those premises by the Corporation in a book kept for the purpose and on so registering any person the Corporation shall issue to him a certificate of registration.

(3) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of premises registered under this section and of the instruments towels materials and equipment used therein ; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) If any person carries on business in contravention of subsection (1) of this section or contravenes any byelaw made under subsection (3) of this section he shall be liable—

(a) in the case of a contravention of subsection (1) to a penalty not exceeding twenty pounds and a daily penalty not exceeding five pounds ; and

(b) in the case of a contravention of a byelaw to a penalty not exceeding five pounds ;

and in either case the court by which he is convicted may (in lieu of or in addition to imposing a penalty) order the suspension or the cancellation of his registration.

(5) Where the registration of any person is cancelled by order of a court under the last preceding subsection—

(a) he shall within seven days deliver up to the Corporation his certificate of registration and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings ; and

(b) he shall not again be registered by the Corporation under this section except in pursuance of a further order of a court of summary jurisdiction made on his application.

(6) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings.

PART III
—cont.11 & 12 Geo. 6.
c. 38.

(7) Where any company within the meaning of the Companies Act 1948 commits any offence for which a penalty is provided by this section proceedings may be taken in respect of such offence against every person who at the time of the commission of the offence was a director manager secretary or other officer of such company or was purporting to act in such capacity as well as or instead of against the company and every such person shall be liable on conviction to the like penalty as if he were the person committing the offence unless he proves to the satisfaction of the court—

(a) that the offence was committed without his consent or connivance; and

(b) that he exercised all such diligence to prevent the commission of the offence as he ought to have exercised having regard to the nature of his functions in that capacity and in all the circumstances.

PART IV

NUISANCES AND OFFENSIVE TRADES

Byelaws as to
tipping refuse.

49.—(1) Section 81 of the Act of 1936 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any dust spoil or refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

(2) Any byelaws made by the Corporation in pursuance of this section may contain provisions for imposing on persons contravening the byelaws penalties not exceeding fifty pounds for each offence and a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Act of 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 and section 100 of that Act shall apply accordingly.

(4) A person contravening any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Act of 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for the continuance of his offence after conviction and to a penalty under section 95 of the Act of 1936 (as so applied) for contravening an order.

(5) Nothing in this section or in any byelaw made thereunder shall extend to—

PART IV
—cont.

- (a) the tipping by the British Electricity Authority of any ash spoil or refuse arising from the generation of electricity on any land for the time being belonging to them and forming part of the site of or used in connection with a station for generating electricity ; or
- (b) regulate or control the tipping of spoil and refuse by any railway or canal undertakers for the purpose of constructing widening or maintaining any railway canal or wharf works ; or
- (c) regulate or control the tipping or depositing of spoil and refuse by the Lee Conservancy Catchment Board in connection with the carrying out of work under powers conferred upon them by any enactment.

50.—(1) As from the commencement of this section no person shall instal in any building whether erected before or after the passing of this Act any furnace for steam raising or for any manufacturing or trade purpose unless such furnace is so far as practicable capable of being operated continuously without emitting smoke. Prevention of smoke from industrial furnaces.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and any person who after conviction for an offence of installing a furnace in contravention of those provisions uses that furnace shall unless it has been amended so as to comply with those provisions be liable to a penalty not exceeding two pounds for each day on which he so uses the furnace.

(3) If a person before installing in a building a furnace to which this section applies submits to the Corporation plans proposals and particulars of the proposed furnace and furnishes them with such other necessary information in regard thereto as they may require the Corporation shall within a period of six weeks from the date upon which such plans proposals particulars and information are received by them serve a notice upon such person stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke and if they are so satisfied or if they do not serve a notice upon such person before the expiration of the said period of six weeks no proceedings shall be taken against him under this section in respect of the installation of that furnace in accordance with the plans proposals particulars and information so submitted and furnished.

(4) Before serving a notice under this section stating that they are not satisfied that the furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation shall consult with the Minister of Fuel and Power.

PART IV
—cont.

(5) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated continuously without emitting smoke the Corporation or a court shall if either of the parties so desire have regard to cost and to local conditions and circumstances.

Byelaws as to
burning
of refuse.

51. Section 82 of the Act of 1936 in its application to the borough shall be extended so as to empower the Corporation to make byelaws prescribing the times and the days of the week during which trade refuse may be set fire to or burned in yards and gardens.

Noise
nuisance.

52.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Act of 1936:

Provided that no complaint to a justice under section 99 of the said Act shall be of any effect unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance which is the subject of the complaint.

(2) In any proceedings under the Act of 1936 in respect of a noise nuisance occasioned in the course of any trade business or occupation it shall be a good defence for the person charged to show that he has used the best practicable means of preventing or mitigating the nuisance having regard to the cost and to other relevant circumstances.

(3) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise which is injurious or prejudicial to health.

(4) Nothing contained in this section shall apply to any railway canal or statutory road transport undertakers or their servants exercising statutory powers.

(5) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 of the Act of 1933.

Silencers for
internal
combustion
engines.

53.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

(2) An authorised officer of the Corporation shall at all reasonable times have access to and be at liberty to take off remove test inspect and replace any silencer used on the exhaust of a stationary internal combustion engine such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that such officer shall not enter upon any land belonging to the commission and used for the purposes of their

railway except after reasonable notice has been given to the commission by the Corporation in that behalf and in exercising the powers of this subsection upon such land he shall comply with such reasonable requirements of the commission as may be necessary for the purposes of safety and for preventing interference with railway traffic.

PART IV
—cont.

(3) Any person who shall use a stationary internal combustion engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding two pounds.

PART V

INFECTIOUS DISEASE

54. In this Part of this Act the expression “notifiable disease” means—

Definition of
notifiable
disease.

(1) any notifiable disease as defined by section 343 of the Act of 1936; and

(2) any infectious disease to which section 144 of that Act for the time being applies in the borough by virtue of regulations made under section 143 thereof.

55.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease or food poisoning shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be furnished
in case of
disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding two pounds.

56. Section 148 of the Act of 1936 in its application to the borough shall have effect as if the following paragraph were substituted for paragraph (b) thereof:—

Restriction on
attendance of
children at
schools and
places of
assembly etc.

“ (b) having the care of a person—

(i) whom he knows to be suffering from a notifiable disease; or

(ii) whom he cannot permit to attend school without contravening section 150 of the Act of 1936; causes or permits that person to expose other persons to the risk of infection by his presence or conduct in any such place as aforesaid; or ”.

PART V
—cont.Exclusion of
children from
entertainments.

57.—(1) With a view to preventing the spread of a notifiable disease the Corporation on the advice of the medical officer may by notice published in such manner as the Corporation think fit prohibit the admission of persons under the prescribed age to places of entertainment or assembly in the borough for a time specified in the notice.

(2) If the person responsible for the management of any place of entertainment or assembly having been served by the Corporation with a copy of a notice published under the preceding subsection admits any person under the prescribed age to that place in contravention of the notice he shall be liable to a penalty not exceeding five pounds:

Provided that in any proceedings under this subsection it shall be a defence to prove that there were reasonable grounds for believing that the person admitted had attained the prescribed age.

(3) In this section the expression “prescribed age” in relation to any notice means such age not exceeding sixteen as may be prescribed by the notice.

Compensation
to persons
for ceasing
employment
to prevent
spread of
disease.

58. If any person at the request in writing of the Corporation or the medical officer stops his employment for the purpose of preventing the spread of a notifiable disease or of a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 or of food poisoning the Corporation may (if they think fit) make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Entry into
premises in
case of disease.

59.—(1) If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

Provided that the medical officer shall not under the powers of this section—

(a) enter any premises except between the hours of seven in the morning and ten in the evening; or

(b) examine a person who is already under the treatment of a registered medical practitioner except with the consent of the latter.

(2) On entering any premises by virtue of a warrant issued under this section the medical officer may take with him such other persons as may be necessary.

(3) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

PART VI

FOOD

60.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to an authorised officer of such intention and shall on the application of an authorised officer within six weeks from the date of such slaughter furnish such information within his knowledge as the authorised officer may reasonably require for the purpose of enabling inquiries to be made to trace the disposition of the carcasses or any part thereof:

Notice of slaughter of animal unfit for food.

Provided that where by reason of accidental injury illness or exposure to infection it is necessary that any such animal should be slaughtered without delay the provisions of this section shall be deemed to be satisfied if—

- (a) notice of the slaughter is given to an authorised officer as soon as reasonably possible whether before or after the slaughter takes place; and
- (b) the carcass is not disposed of until the expiration of twelve hours from the delivery of such notice or the disposal of the carcass has been approved by an authorised officer.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 to 1948 apply.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

1 Edw. 8. &
1 Geo. 6. c. 70.

(5) In this section the expression "authorised officer" means any officer of the Corporation who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act.

61.—(1) As from the commencement of this section where the slaughter of an animal intended for human consumption shall take place outside a slaughter-house and the carcass of the animal shall be brought into a slaughter-house within the borough such carcass accompanied by the head the tongue the lungs the heart the liver the kidneys the spleen and stomach (contents emptied) the intestines the mesenteric fat and in the case of a female

Animals slaughtered outside slaughter-houses.

PART VI
—cont.

animal the uterus and the udder shall be retained and kept apart from other meat intended for human consumption until such carcase and organs have been inspected or their removal has been authorised in accordance with the provisions of the Public Health (Meat) Regulations 1924 to 1948.

(2) Where there is any contravention of the provisions of this section the occupier of the slaughter-house and also the person by whom the carcase shall have been prepared or dressed shall be liable to a penalty not exceeding five pounds.

(3) In this section “ animal ” “ slaughter-house ” and “ meat ” have the same respective meanings as in the Public Health (Meat) Regulations 1924 to 1948.

Registration
of hawkers of
food and their
premises.

62.—(1) As from the commencement of this section the following provisions shall have effect in the borough :—

(a) No person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation ;

(b) No premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) (a) The Corporation shall on registering any premises issue to the person making the application a certificate of registration which shall be kept affixed in a conspicuous place in the premises.

(b) If in pursuance of subsection (5) of this section the Corporation revoke the registration of the premises the certificate of registration shall be returned to the Corporation.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(5) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food ; or

- (ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid :

PART VI
—cont.

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under section 93 (As to appeals) of this Act against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under any regulations made thereunder.

(8) The provisions of this section shall not apply to any premises used for the sale of excisable liquor on the premises or as a theatre cinematograph theatre music hall or concert hall or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(9) In this section the expression "food" does not include any substance contained in a container of such materials and so closed as to exclude all risk of contamination.

63.—(1) As from the commencement of this section no person shall by himself or by any person employed by him sell or offer or expose for sale shell-fish in any premises unless such person and such premises are registered for that purpose by the Corporation. Registration of vendors of shell-fish and their premises.

(2) The Corporation shall on registering any premises issue to the person making the application a certificate of registration which shall be kept affixed in a conspicuous place in the premises.

PART VI
—cont.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(4) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(5) The provisions of this section shall not apply to any premises registered under section 62 (Registration of hawkers of food and their premises) of this Act.

Restriction on
taking inedible
fats into
premises
where food
is prepared.

64. Any person taking or introducing or causing to be taken or introduced any fats which are unfit for food into any premises in which any food into the composition of which fat enters is manufactured or prepared for sale shall for each offence be liable to a penalty not exceeding five pounds unless he can prove that such fats were not taken or introduced into such premises for the purpose of being used and have not been used as an ingredient in the manufacture or preparation of any food.

PART VII

FINANCE

Power to
borrow.

65.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall repay any sum so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

Closing of
registers.

66.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable.

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

67.—(1) In addition to any other form of borrowing the Corporation may exercise any statutory borrowing power by the issue of bonds to be called “Leyton Corporation bonds” (and in this Act referred to as “bonds”) in accordance with the provisions of this Act. PART VII
—cont.
Power to borrow by issue of bonds.

(2) Where the Corporation raise money by the issue of bonds sections 209 to 214 of the Act of 1933 shall apply as if the money had been raised by borrowing by mortgage under that Act and bonds were mortgages within the meaning of that Act.

(3) The provisions set out in the schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907. 62 & 63 Vict.
c. 9.
7 Edw. 7. c. 13.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section. 54 & 55 Vict.
c. 39.

68.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest or dividend warrants to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register: Dividend warrants by post.

Provided that if such person gives notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the meaning of the Bills of Exchange Act 1882. 45 & 46 Vict.
c. 61.

PART VII
—cont.Application
of general rate
fund for certain
purposes.

69.—(1) If in respect of any financial year the moneys received by the Corporation on account of the revenue of any of the Corporation undertakings (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking properly chargeable to revenue the Corporation (if they think fit) may in respect of that year apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in the reduction of capital moneys borrowed for the purpose of the undertaking;
- (b) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as the Corporation may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the reserve fund so provided amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of that undertaking.

(2) Any reserve fund which has been provided in respect of any of the Corporation undertakings and which is in existence on the first day of April nineteen hundred and fifty-one shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking; or
- (c) in or towards the payment of the cost of acquiring land for or renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

70.—(1) The Corporation may (if they think fit) establish a fund to be called “ the capital fund ” to which they may pay—

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—cont.

- (a) any sums derived from the sale of any property of the Corporation ;
- (b) the surplus of the revenue income over the revenue expenditure of the general rate fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year ; and
- (c) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the council may by resolution direct not being moneys directed by law to be applied to any other purpose :

Provided that—

- (i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of twice the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925 ; and
- (ii) payments into the capital fund shall not be made whenever that fund amounts to eighty thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with an undertaking from which revenue is derived) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor) :

Provided that the amount to be expended under this subsection shall not exceed the sum of ten thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing

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—cont.

paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation.

(5) Any sum derived from the sale of any corporate land of the Corporation as defined in section 305 of the Act of 1933 and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

8 & 9 Geo. 6.
c. 18.

(6) Nothing in this section shall affect the operation of paragraphs (a) (b) or (c) of subsection (1) of section 8 of the Local Authorities Loans Act 1945 in any case in which the moneys in the capital fund are used in pursuance of that section.

Renewal and
repairs fund.

71.—(1) The Corporation may (if they think fit) establish a fund (to be called “the renewal and repairs fund”) for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply the moneys of the fund in defraying such expenditure but this section shall not apply to expenditure in connection with any buildings works plant appliances or things for the purposes of any of the Corporation undertakings in respect of which they have provided a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Corporation may from time to time pay into the renewal and repairs fund such sums as they think fit from the revenue of the general rate fund (including a sum equal to the interest earned on the renewal and repairs fund and any income arising from the application of that fund to the purposes authorised) but the maximum amount standing to the credit of the renewal and repairs fund shall not except with the approval of the Minister at any time exceed seventy-five thousand pounds.

(3) (a) Pending the application of moneys in the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in the manner provided by this

subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

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72.—(1) The Corporation may (if they think fit) establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

- (a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks ; or
- (b) if the Corporation insure in some insurance office against the whole or any part of all or any of the specified risks such sums as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the revenue of the general rate fund and (if they think fit) from the housing revenue account and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other

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manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by resolution of the council.

Art fund.

73.—(1) The Corporation may (if they think fit) establish a fund to be called "the art fund" to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or historical interest which in their opinion it is desirable at any

time to acquire for exhibition in and as additions to the collection in any art gallery museum or other building of the Corporation and such fund shall be formed by paying thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-fifth of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925 or such greater fraction (not exceeding one-half) of the product of a penny rate as may be approved by the Minister:

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised by this section the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by the proviso to subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

74. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate which may be due from him to the Corporation and intends to evade payment of the same by departing from the said premises the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim and to detain them until the complaint is determined upon the return of the summons. Recovery of rates from persons removing.

75.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions in and subject to which rates are recoverable from occupiers of rated hereditaments. Recovery of rates from certain owners.

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The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

Receipts in
case of minors.

76. If any money is payable to a holder of any authorised security being a minor the receipt of his guardian shall be a sufficient discharge to the Corporation.

Payments due
to deceased
employees.

77.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) inclusive of subsection (1) of section 46 of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in due course of administration:

15 Geo. 5.
c. 23.

16 & 17 Geo. 5.
c. 60.

Provided that—

(a) the Corporation may (notwithstanding the receipt of a notice under proviso (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

9 & 10 Geo. 6.
c. 67.

(b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (i) (vi) of the Administration of Estates Act 1925 are applicable)

pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) Before paying any sum in accordance with the provisions of subsection (1) of this section (except under proviso (a) thereof) to any person other than the personal representative of the deceased employee the Corporation shall require either—

(a) a statutory declaration (or when payment is made to the Crown or to the duchy of Lancaster or to the duchy of Cornwall a statement) by the person or one of the persons to whom the Corporation may pay or propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or

(b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that any death duties payable in respect of such sum have been paid or that no such duties are payable.

(3) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercising their powers under this section.

78.—(1) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is lawfully detained as a person of unsound mind in accordance with the Lunacy Act 1890 the Corporation may pay the whole of that sum or so much thereof as they think fit to the person having the care of the person so detained as aforesaid and may pay or apply the whole or so much as they think fit of the surplus (if any) thereof to or for the maintenance or benefit of the wife or husband or relations of the person so detained as aforesaid.

Payment of pension etc. of person of unsound mind. 53 Vict. c. 5.

(2) Subject to the provisions of this section where a person entitled to receive from the Corporation any sum to which this section applies is in the opinion of the Corporation through mental infirmity incapable of managing his affairs the Corporation may pay or apply the whole or so much as they think fit of that sum to or for the maintenance or benefit of such person or of the wife or husband or relations of such person.

(3) This section applies to any sum payable by the Corporation to an employee or former employee or pensioner of the Corporation or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with

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—cont.

or without interest of contributions made to any superannuation or other fund being either a lump sum not exceeding one hundred pounds or an instalment of a periodical payment not exceeding one hundred pounds per annum.

(4) Not less than fourteen days before exercising their power under this section for the first time in relation to any person the Corporation shall give to the Master in Lunacy notice of their intention in that behalf specifying the name and address of that person and the amount and nature of the sums in respect of which the Corporation intend to exercise the said power and in relation to any person to whom subsection (2) of this section applies the Corporation shall at the same time give notice to that person in a form approved by the Master in Lunacy:

Provided that the Corporation may with the approval of the Master in Lunacy exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

(5) If at any time the Master in Lunacy gives to the Corporation notice in writing that he objects to the exercise by the Corporation of the said power in relation to any person the said power shall as from the date of the receipt by the Corporation of the notice cease to be exercisable by the Corporation in relation to that person unless and until the master withdraws the notice.

(6) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercise of the said power.

Power to grant
allowances or
gratuities in
certain cases.

79.—(1) The Corporation may if they think fit grant by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service a gratuity not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment:

Provided that this section shall not apply—

1 Edw. 8. &
1 Geo. 6. c. 68.

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 of the Local Government Superannuation Act 1937; or

9 & 10 Geo. 6.
c. 62.

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Acts 1925 to 1943 or to death benefit under the National Insurance (Industrial Injuries) Act 1946.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

80. Notwithstanding anything in the Local Government Superannuation Acts 1937 and 1939 the Corporation shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 and 1947 to or for the benefit of any person unless satisfactory proof is given to the Corporation in such manner and at such times as they may from time to time require of the continued existence of such person.

As to proof of continued existence of pensioners.
2 & 3 Geo. 6. c. 18.
7 & 8 Geo. 6. c. 21.
10 & 11 Geo. 6. c. 7.

81. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

Service of demand notes.

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GENERAL

82. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Corporation or in case of dispute by a court of summary jurisdiction.

Apportionment of expenses in case of joint owners.

83. Whenever under any public general Act from time to time in force in the borough (other than the Act of 1936) or under any local enactment the Corporation on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum not exceeding five per centum of the cost of the works as they think fit in respect of their establishment charges.

Power to charge in respect of establishment expenses.

84. Where in pursuance of any enactment the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of such terms or conditions shall as regards liability to a penalty and other consequences be deemed equivalent to the execution of the works or the doing of the act or thing without the required consent.

Breach of conditions of consent of Corporation.

85. Whenever the Corporation or any of their officers under any enactment execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to execute re-execute or alter such work or do such act or thing the Corporation shall not as between themselves and such owner occupier or other person in the

In executing works for owner Corporation liable for negligence only.

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absence of any negligence on their part or the part of any of their officers or any contractor or other person employed by them or him be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation or such officer in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall be recoverable accordingly.

As to byelaws.

86. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister.

Restriction
on right to
prosecute.

87. Section 298 of the Act of 1936 shall apply to offences created by or under Part II (Streets) Part III (Sanitation and buildings) Part IV (Nuisances and offensive trades) Part V (Infectious disease) and Part VI (Food) of this Act as if they were offences created by or under that Act.

Damages and
charges to be
settled by
court.

88. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Application of
Arbitration
Acts.

89. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Determination
of
compensation.

90. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Inquiries by
Ministers.

91. The Minister the Secretary of State the Minister of Transport and the Minister of Fuel and Power may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

92.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough. Every such advertisement shall also state the general effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act (namely):—

- Section 34 (Sealing of drains and sewers);
- Section 36 (Demolition of buildings);
- Section 48 (Hairdressers and barbers);
- Section 50 (Prevention of smoke from industrial furnaces);
- Section 60 (Notice of slaughter of animal unfit for food);
- Section 61 (Animals slaughtered outside slaughter-houses);
- Section 62 (Registration of hawkers of food and their premises);
- Section 63 (Registration of vendors of shell-fish and their premises).

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

- (a) was carrying on any such business or using any premises for any such purpose; and
- (b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 93 (As to appeals) of this Act.

93.—(1) (a) Any person aggrieved by any requirement of refusal or other decision of the Corporation or of any officer thereof under any of the Parts of this Act hereinafter mentioned

As to appeals.

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—cont.

(except under section 28 (Summary power to remedy stopped-up drains etc.) or section 38 (As to defective roofs) of this Act) may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(b) The Parts of this Act referred to in this subsection are—

Part II (Streets);

Part III (Sanitation and buildings);

Part IV (Nuisances and offensive trades);

Part V (Infectious disease); and

Part VI (Food).

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before a committee of the council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

(a) no proceedings in respect of any failure to execute the work or take the action shall be taken;

(b) the Corporation shall not execute such work or take such action; and

(c) any such person may carry on such business and use such premises for such purpose ;
until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

94. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Application
of provisions
of Act of 1936.

- Section 271 (Interpretation of "provide") ;
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers) ;
- Section 276 (Power of local authority to sell certain materials) ;
- Section 277 (Power of councils to require information as to ownership of premises) ;
- Section 283 (Notices to be in writing ; forms of notices &c.) ;
- Section 284 (Authentication of documents) ;
- Section 285 (Service of notices &c.) ;
- Section 286 (Proof of resolutions &c.) ;
- Section 287 (Power to enter premises) ;
- Section 288 (Penalty for obstructing execution of Act) ;
- Section 289 (Power to require occupier to permit works to be executed by owner) ;
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises : power to order payment by instalments) ;
- Section 293 (Recovery of expenses &c.) ;
- Section 294 (Limitation of liability of certain owners) ;
- Section 295 (Power of local authority to grant charging orders) ;
- Section 296 (Summary proceedings for offences) ;
- Section 297 (Continuing offences and penalties) ;
- Section 299 (Inclusion of several sums in one complaint &c.) ;
- Section 304 (Judges and justices not to be disqualified by liability to rates) ;
- Section 328 (Powers of Act to be cumulative) ;
- Section 329 (Saving for certain provisions of the Land Charges Act 1925) :

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—cont.

Provided that—

(a) the said sections 277 287 289 291 294 295 and 329 shall only apply to the provisions contained in Part II (Streets) Part III (Sanitation and buildings) Part IV (Nuisances and offensive trades) Part V (Infectious disease) and Part VI (Food) of this Act ;

(b) for the purposes of paragraph (a) of subsection (1) of the said section 287 the provisions of section 47 (Prohibition of sale of verminous articles) and section 48 (Hairdressers and barbers) of this Act and of the said Part VI shall be provisions which it is the duty of the Corporation to enforce.

Repeals etc.

95.—(1) The following enactments are hereby repealed:—
The Act of 1898—

Section 37 (Height of chimneys) ;

Section 63 (Compensation to persons ceasing employment) :

The Act of 1904—

Section 86 (Forecourts to be fenced off from streets) ;

Section 111 (Child suffering from infectious disease not to attend school) :

The Leyton Order 1926—

Article 5 (Council may prescribe size &c. of ashbins) ;

Article 6 (Owners &c. may be required to provide standard ashbins) ;

Article 7 (Maintenance &c. by council of standard ashbins) ;

Article 8 (Maintenance &c. by owner or occupier of standard ashbins) ;

Article 9 (Appeal to petty sessional court) ;

Article 10 (Application of sections 184 to 187 of Act of 1904) :

Provided that for the purposes of section 75 of the Act of 1936 a standard ashbin provided or required to be provided under article 6 of the Leyton Order 1926 shall be deemed to be a dustbin provided or required to be provided under subsection (1) of the said section 75.

23 & 24 Geo. 5.
c. xlv. (2) As from the commencement of section 48 (Hairdressers and barbers) of this Act section 87 (Byelaws as to hairdressers and barbers premises) of the Essex County Council Act 1933 shall cease to apply to the Corporation and to the borough :

Provided that any byelaws made by the Corporation under the said section 87 shall be deemed to have been made under subsection (3) of section 48 (Hairdressers and barbers) of this Act.

96. Notwithstanding anything contained in this Act the following provisions for the protection of the Metropolitan Water Board (in this section referred to as "the board") shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

PART VIII
—cont.

For protection
of
Metropolitan
Water Board.

(1) In this section "apparatus" means and includes all or any mains pipes valves works or apparatus belonging to the board:

(2) Not less than twenty-eight days before the Corporation in the exercise of the powers of section 6 (Variation of width of carriageways and footways) of this Act add to the carriageway of a street any portion of footway in or under which any apparatus is situate the Corporation shall give to the board notice of their intention so to do accompanied by a plan of the intended alteration and the board may if it is reasonably necessary and if so required by the Corporation shall alter the position of such apparatus to such other position in or under the carriageway or the footway as may be reasonable:

(3) Not less than twenty-eight days before the Corporation in the exercise of the powers of—

(a) section 7 (Adjustment of boundaries of streets) of this Act exchange or convey to any person any part of a street; or

(b) an order made under section 18 (Stopping up and diversion of highways) of this Act commence the stopping up or diversion of a highway;

they shall give notice to the board of their intention so to do accompanied by a plan showing the street proposed to be adjusted and the portion thereof proposed to be exchanged or conveyed or the highway proposed to be stopped up or diverted (as the case may be) and the board may (and if so required by the Corporation shall) remove any apparatus situate in or under the street so exchanged or conveyed or in or under the highway so stopped up or diverted and re-lay the same in the street or highway (if any) substituted for the street exchanged or conveyed or the highway stopped up or diverted (as the case may be) or in such other situation as the board may reasonably determine or provide and lay in such substituted street or highway or other position other apparatus equally suitable in lieu of such existing apparatus:

(4) Not less than twenty-eight days before the Corporation—

(a) pursuant to section 9 (Shelters etc. for passengers on public vehicles) of this Act erect any shelter or other accommodation over any apparatus; or

PART VIII
—cont.

(b) pursuant to section 14 (Crossings over footways) of this Act require—

(i) the construction of a carriage-crossing across any grass verge or footway in or under which any apparatus is situate ; or

(ii) any such footway to be strengthened or adapted ;

the Corporation shall give notice to the board accompanied by a plan and section of the proposed work and if in consequence of the construction of the carriage-crossing across such grass verge or footway or the strengthening or adaptation of any such footway it shall be reasonably necessary to alter the position of the apparatus in or under the footway the board may and if so required by the Corporation shall alter the position of the apparatus to such other position as may be reasonable :

(5) The board shall within fourteen days from the receipt of a notice from the Corporation pursuant to any of the three immediately preceding subsections give to the Corporation fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) or to remove and re-lay the same or provide and lay new apparatus under the provisions of the relevant subsection and shall at the same time deliver to the Corporation a plan and section of the work proposed by the board. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the position of the apparatus shown thereon shall be deemed to be reasonable :

(6) Whenever by reason or in consequence of the exercise by the Corporation of the powers of the said section 18 any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the board such a sum as may be agreed between the Corporation and the board or as failing agreement between them may be determined by arbitration to be the value of the apparatus so rendered derelict useless or unnecessary and upon such payment such apparatus shall become the property of the Corporation :

(7) The Corporation shall repay to the board the reasonable expenses incurred by the board in or in connection with—

(a) the alteration of the position of any apparatus under subsection (2) or subsection (4) of this section ;

(b) the removing and re-laying of any apparatus and the provision and laying of any new apparatus under the provisions of subsection (3) of this section ;

(c) the making good of any damage to any apparatus caused by or resulting from any act omission or default of the Corporation their officers servants and workmen in the exercise of the powers of Part II of this Act ;

and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus ; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection :

Provided that if the board provide and lay apparatus of greater dimensions or of greater capacity than those of the existing apparatus the board shall bear such proportion of the cost of such provision and laying as represents the amount by which such cost exceeds the cost which would have been incurred if the dimensions or the capacity of the apparatus so provided and laid had been the same as those of the existing apparatus :

- (8) The Corporation shall not exercise the powers of section 5 (Trees grass verges and gardens) of this Act so as to cause damage to or obstruct or render less convenient the access to any apparatus :
- (9) If any shelter accommodation or barrier erected by the Corporation under the powers of section 9 (Shelters etc. for passengers on public vehicles) of this Act is situate over any apparatus laid or placed before the erection of the shelter accommodation or barrier and the board at any time after such erection give to the Corporation notice of their desire to obtain access to such apparatus the Corporation shall either remove temporarily the shelter accommodation or barrier or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove the shelter accommodation or barrier or such part thereof) bear any additional expense due to the existence of the shelter accommodation or barrier which may reasonably be incurred by the board in obtaining such access :
- (10) Nothing in section 85 (In executing works for owner Corporation liable for negligence only) of this Act shall affect the rights or obligations of the Corporation or the board under any enactment other than this Act in respect of the execution of any work of reinstatement in any street broken up by the board :

PART VIII
—cont.

(11) (a) Any difference which may arise between the Corporation and the board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator shall have regard to any duty or obligation which the board may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

For protection
of electricity
and gas
undertakers.

97. For the protection of the British Electricity Authority and the London Electricity Board and the North Thames Gas Board (each of whom is in this section referred to as “the undertakers”) the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect :—

(1) In this section—

(a) “ apparatus ” means—

(i) as regards the British Electricity Authority or the London Electricity Board all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to that authority or board ;

(ii) as regards the North Thames Gas Board any mains pipes and other works and apparatus belonging to the gas board ; and

(b) “ position ” includes depth :

(2) If it shall be agreed between the Corporation and the undertakers or (in case of difference) determined by arbitration that in consequence of—

(a) the addition to the carriageway of a street of any portion of the footway or footways under the powers of section 6 (Variation of width of carriageways and footways) of this Act ; or

(b) the conveyance under the powers of section 7 (Adjustment of boundaries of streets) of this Act of land forming part of a street ; or

(c) the construction under the powers of section 14 (Crossings over footways) of this Act of a carriage-crossing across the grass verge or footway of any street or the strengthening or adaptation in pursuance of a requirement under that section of a footway ; or

(d) the stopping up or diversion under an order made pursuant to section 18 (Stopping up and diversion of highways) of this Act of any highway or any length of a highway ;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as “ protective works ”) for the protection of any apparatus should be executed the undertakers may and (if so required by the Corporation) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Corporation shall repay to the undertakers the amount of the costs and expenses reasonably incurred by the undertakers in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as “ the said expenses ”):

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(a) (i) the undertakers erect lay or place new apparatus in substitution for their existing apparatus ; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works ; and

(iii) the date at which the existing apparatus would have required to be renewed is deferred by reason of the erection laying or placing of the new apparatus or the execution of protective works ; or

(b) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of improved apparatus ; or

(ii) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) than those of the existing apparatus ; or

(iii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which

PART VIII
—cont.

it is agreed or determined by arbitration that such greater depth is reasonably necessary in consequence of the addition to the carriageway of a street of part of the footway or the construction of a carriage-crossing across the grass verge or footway of a street or of the strengthening or adaptation of the footway ;

the undertakers shall themselves bear (in the case referred to in paragraph (a) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the undertakers resulting from such deferment as is referred to in sub-paragraph (iii) of the said paragraph (a) and (in the case referred to in paragraph (b) of this proviso) such proportion of the said expenses as represents the amount of such enhancement as is referred to in that paragraph except to the extent of any part of such amount which may be borne by the undertakers under paragraph (a) of this proviso :

Provided also that where the apparatus had been laid or constructed in under upon or over the part of the street highway footway or grass verge affected within the period of two years immediately preceding the giving of the relevant notice required by paragraph (4) of this section and at the time of the laying or construction of that apparatus the Corporation had given to the undertakers warning in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Corporation if the said powers are exercised by the Corporation in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the undertakers :

- (3) Notwithstanding the conveyance under the powers of section 7 (Adjustment of boundaries of streets) of this Act of land forming part of a street or the stopping up or diversion under an order made pursuant to section 18 (Stopping up and diversion of highways) of this Act of any highway or any length of a highway in under upon or over which street or highway or length of a highway any apparatus is situate the undertakers shall (unless the apparatus is removed or diverted under the provisions of paragraph (2) of this

section or unless new apparatus has been laid in substitution therefor) continue to have the same powers and rights in respect of such apparatus as if the land in under upon or over which the same is situate had continued to be part of the street or highway:

(4) The Corporation shall give to the undertakers not less than twenty-eight days' notice in writing of their intention to exercise any of the powers referred to in paragraph (2) of this section with respect to land forming part of a street or to any portion of a street highway footway or grass verge in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and section showing the nature and extent of the proposals in so far as they relate to any such land or portion of a street highway footway or grass verge as aforesaid:

(5) If within twenty-eight days after the receipt from the Corporation of any notice under paragraph (4) of this section of their intention to exercise any such powers as are referred to in that paragraph the undertakers give to the Corporation notice in writing of their intention (otherwise than by the requirement of the Corporation) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Corporation a plan and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Corporation shall not exercise the powers referred to in the notice given by them as aforesaid until—

(a) it shall have been agreed between the Corporation and the undertakers or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary; and

(b) the plans and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled:

Provided that if the proposals contained in any notice given to the Corporation by the undertakers under this paragraph and any plans or particulars delivered to the Corporation with such notice are not disapproved by the Corporation within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purpose of this section to be reasonably necessary and the Corporation shall be deemed to have approved such plans or particulars:

PART VIII
—cont.

- (6) Forthwith after the completion of any removal or diversion or alteration of position of apparatus in accordance with paragraph (2) of this section or of any protective works in accordance with that paragraph the undertakers shall if reasonably required by the Corporation fill in the excavation and make good the surface of the ground to the reasonable satisfaction of and (subject so far as applicable to the provisos to the said paragraph (2)) at the cost of the Corporation:
- (7) The Corporation shall not exercise the powers of section 5 (Trees grass verges and gardens) of this Act so as to cause damage to or obstruct or render unreasonably inconvenient the access to any apparatus of the undertakers:
- (8) If any shelter erected by the Corporation under the powers of section 9 (Shelters etc. for passengers on public vehicles) of this Act is situate over any apparatus laid or placed before the erection of the shelter and the undertakers at any time after such erection give to the Corporation notice of their desire to obtain access to any such apparatus the Corporation shall either remove temporarily the shelter or so much thereof as shall require to be removed in order to afford such access or (if the Corporation determine not to remove the shelter or part thereof) bear any additional expense due to the existence of the shelter which may reasonably be incurred by the undertakers in obtaining such access:
- (9) (a) Any question or dispute which may arise between the Corporation and the undertakers under this section (other than a question or dispute as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to arbitration;
- (b) In settling any question or dispute under this section the arbitrator shall have regard to any duties or obligations which the undertakers may be under in respect of any apparatus.

For further
protection of
electricity
undertakers.

98. For the further protection of the British Electricity Authority and the London Electricity Board (each of whom is in this section referred to as "the electricity undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the electricity undertakers apply and have effect:—

- (1) In this section "apparatus" means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity undertakers:

(2) Whenever by reason of the exercise by the Corporation of the powers of section 18 (Stopping up and diversion of highways) of this Act any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of section 97 (For protection of electricity and gas undertakers) of this Act) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the electricity undertakers such a sum as may be agreed between the Corporation and the electricity undertakers or as failing such agreement may be determined by arbitration to be the value of such apparatus and such apparatus shall upon such payment become the property of the Corporation :

(3) Section 22 (Restriction on buildings under footways) and section 42 (Cellars and rooms below subsoil water level) of this Act shall not apply to the construction by the electricity undertakers of any underground street box or any switch station or substation.

99. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

100. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation. Costs of Act.

THE SCHEDULE

PROVISIONS AS TO CORPORATION BONDS

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Corporation may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine :

Provided that bonds shall not be issued at a lower price than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenue of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) shall be repayable at par at the office of the treasurer on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) the name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided ;

(b) the date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may issue a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.
Date

BOROUGH OF LEYTON

LEYTON CORPORATION BONDS

.....per centum Leyton Corporation bond repayable at par
on the.....19.....at the.....
.....

This is to certify that.....
of
is the registered holder of a Corporation bond for.....
pounds (£.....) issued by the mayor aldermen and burgesses
of the borough of Leyton under the Leyton Corporation Act
1950 at.....

The corporate seal of the mayor
aldermen and burgesses of
the borough of Leyton was
hereunto affixed in the
presence of }

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER
LEYTON CORPORATION BONDS

I
in consideration of the sum of.....
paid by.....
(hereinafter called “the transferee”) do hereby assign and
transfer to the transferee.....
To hold unto the transferee his executors administrators and
assigns subject to the several conditions on which I held the
same immediately before the execution hereof and I the
transferee do hereby agree to accept and take the said
.....subject to the conditions aforesaid
As witness our hands and seals this.....day of
nineteen hundred and.....

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the Corporation and the Corporation shall enter a note thereof in a book to be called the "Register of transfers of Leyton Corporation bonds" (hereinafter called "the register") and shall endorse on the deed of transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Corporation as aforesaid the Corporation shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8. The Corporation may close the register for a period not exceeding thirty days immediately before the thirty-first day of March and the thirtieth day of September respectively in any year and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the half-yearly payment of interest next falling due may be made to the persons registered as holders of bonds on the date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

11. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

12. The production to the Corporation of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

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